01. Notice of Application (Page 1 of 4)

Supreme Court of British Columbia â Vancouver No. S-268841

No. S-268841
Vancouver Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:

PACIFIC RIM HOLDINGS LTD. PLAINTIFF

AND:

NORTH SHORE LOGISTICS INC. DEFENDANT

FORM 32 (RULE 8-1(4))
NOTICE OF APPLICATION

Name(s) of applicant(s): Pacific Rim Holdings Ltd. (Plaintiff)

To: North Shore Logistics Inc. (Defendant)
And to: Its solicitor of record, Kendra T. MacIntyre, Coastline Business Law Group

TAKE NOTICE that an application will be made by the applicant to the presiding
Associate Judge in Chambers via Microsoft Teams video appearance on November 19, 2026,
at 9:45 AM, for the order(s) set out in Part 1 below.

Part 1: ORDERS SOUGHT

1. Pursuant to Supreme Court Civil Rule 7-1(11), the defendant, North Shore Logistics Inc., within fourteen (14) days of the date of this Order, prepare,

verify by affidavit, and serve upon the plaintiff an amended/supplementary List of Documents listing all documents that are or have been in its possession or control relating to the actual monthly inventory volume calculations and third-party pallet throughput records for the period between January 1, 2025, and June 30, 2026.

2. Pursuant to Supreme Court Civil Rule 7-1(18), the defendant produce for the inspection of the plaintiff unredacted copies of the Internal Quarterly Operations and Logistics Audit Reports prepared for the board of directors of North Shore Logistics Inc. for Q1 2025 through Q2 2026 inclusive.

3. The costs of this application be awarded to the plaintiff in any event of the cause.

Part 2: FACTUAL BASIS

1. On October 14, 2024, the plaintiff and defendant executed a written Master Commercial Warehousing & Logistics Agreement (the "Agreement"), under which the defendant agreed to provide dedicated temperature-controlled storage and priority freight handling at its Richmond terminal.

2. Clause 14.2 of the Agreement stipulates that warehousing fees payable by

the plaintiff are tied directly to verifiable pallet throughput thresholds, verified through monthly third-party freight audits.

3. In this action, the plaintiff claims damages of $438,200.00 for systematic fee overcharges and breach of the minimum available square footage covenant during the 18-month operating window between January 1, 2025, and June 30, 2026.

4. On August 18, 2026, the defendant delivered its initial List of Documents under Rule 7-1(1). The list omitted all internal operations throughput logs and redacted the entirety of its Quarterly Audit Reports on the ground of alleged "commercial sensitivity."

5. The defendant has refused, upon formal written demand delivered September 22, 2026, to provide unredacted copies or supplement its List of Documents, despite these records being directly material to the threshold inventory metrics in dispute.

Part 3: LEGAL BASIS

1. Supreme Court Civil Rules, B.C. Reg. 168/2009, Rules 7-1(1), 7-1(11), 7-1(18), 7-1(20), and 8-1.

2. The documents sought are directly material to proving whether the defendant possessed

the capacity it billed to the plaintiff and whether pallet calculations were inflated.

3. A claim of "commercial sensitivity" or competitive discomfort is not a recognized ground of legal privilege under BC law: Kalin v. Campbell, 2014 BCCA 441 at paras 24-28.

4. The relief sought is proportionate within the meaning of Rule 1-3, as the production requires no burdensome creation of new material, but merely unredacting and listing discrete, existing operational records.

Part 4: MATERIAL TO BE RELIED ON

1. Affidavit #1 of Eleanor Vance, made October 14, 2026.
2. Pleadings filed herein.
3. Kalin v. Campbell, 2014 BCCA 441.

The applicant estimates that the application will take 30 minutes.

This matter is within the jurisdiction of an Associate Judge.

Dated: October 15, 2026.

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Marcus A. Sterling
Counsel for the Plaintiff